

1 AN ACT relating to environmental administrative regulations.

2 ***Be it enacted by the General Assembly of the Commonwealth of Kentucky:***

3 ➔SECTION 1. A NEW SECTION OF KRS CHAPTER 13A IS CREATED TO
4 READ AS FOLLOWS:

5 **(1) As used in this section:**

6 **(a) "Applicable environmental requirement" means an environmental**
7 **requirement or regulatory standard imposed by an administrative regulation**
8 **or proposed amendment to an existing administrative regulation**
9 **promulgated under the statutory authority of KRS Chapter 39E, 109, 146,**
10 **151, 211, 224, or 350;**

11 **(b) "Best available science" means science that:**

- 12 **1. Is reliable, unbiased, subject to independent verification, and applies**
13 **to the administrative regulation;**
- 14 **2. Maximizes the quality, objectivity, relevance, completeness, and**
15 **integrity of information, including:**
- 16 **a. Statistical information;**
- 17 **b. Human, animal, and other relevant scientific studies; and**
- 18 **c. If applicable, human health risk-based assessments; and**
- 19 **3. Involves the use of scientifically defensible quality-assured supporting**
20 **studies conducted in accordance with generally accepted scientific or**
21 **technical practices utilizing data collected by generally accepted**
22 **methods or best available methods that are:**
- 23 **a. Site-specific studies, including areawide or statewide studies;**
- 24 **b. Studies published in a refereed journal; or**
- 25 **c. External peer-reviewed studies contained in a federal**
26 **government report published for a purpose other than**
27 **development of an administrative regulation;**

1 (c) "Generally accepted scientific or technical practices" means scientific
2 methods, principles, or protocols that:

3 1. Are broadly acknowledged and routinely applied by the relevant
4 scientific community;

5 2. Are consistent with refereed journal literature or established technical
6 standards; and

7 3. Have been tested for reliability and validity;

8 (d) "Manifest bodily harm" means a physical disease or injury that is:

9 1. Presently existing and diagnosable;

10 2. Not based solely on the presence or detection of a substance in the
11 human body; and

12 3. Not based solely on an increased risk of disease;

13 (e) "Refereed journal" means a publication that:

14 1. Uses an editorial board or critical review panel of subject-matter
15 experts in the relevant scientific or technical disciplines who critically
16 and objectively assess the methodology and analysis of submitted
17 scientific studies in a nonpartisan fashion and provide editorial
18 services prior to publication; and

19 2. Takes meaningful steps to avoid biases in its scientific review process;
20 and

21 (f) "Weight of scientific evidence" means an approach to scientific evaluation
22 in which each piece of relevant information is considered based on its
23 quality and relevance, which, at a minimum, shall include consideration of
24 study design, fitness for purpose, replicability, peer review, and
25 transparency and reliability of data, and is then transparently integrated
26 with other relevant information to inform the scientific evaluation prior to
27 making a judgment about the scientific evaluation.

1 (2) (a) Any administrative regulation related to setting an applicable
2 environmental requirement shall not be more stringent or extensive in
3 scope, coverage, or effect than any federal law or regulation regarding the
4 same or a substantially similar topic.

5 (b) In the absence of a federal law or regulation regarding the same or a
6 substantially similar topic, any administrative regulation setting an
7 applicable environmental requirement shall not be proposed or promulgated
8 unless all scientific and technical information relied on to support the
9 administrative regulation is based upon the best available science and the
10 weight of scientific evidence, and the administrative regulation is
11 technologically achievable at an applicable scale.

12 (c) For any administrative regulation relating to an applicable environmental
13 requirement subject to paragraph (b) of this subsection that is proposed or
14 promulgated by an agency to protect human health, safety, or welfare, the
15 following additional requirements shall apply:

16 1. The best available science and the weight of scientific evidence shall
17 establish a direct causal link between exposure at or above any
18 standards set forth in the administrative regulation and manifest
19 bodily harm in humans based on generally accepted scientific or
20 technical practices; and

21 2. In the absence of data from voluntary scientific studies on humans,
22 the best available science and the weight of scientific evidence may be
23 based on tests performed on experimental animal species or human
24 and animal cells establishing a direct causal link, based on generally
25 accepted scientific or technical practices, between exposure at or
26 above any standards set forth in the administrative regulation and
27 manifest bodily harm in humans, provided the harm can be

1 extrapolated to humans based upon the best available science and the
2 weight of scientific evidence.

3 (3) This section shall not apply to:

4 (a) Any administrative regulation that is required by federal law or regulation,
5 including but not limited to administrative regulations promulgated to
6 comply with, and in furtherance of, federal agency authorization or primacy
7 requirements;

8 (b) Any administrative regulation that is less stringent or less extensive in
9 scope, coverage, or effect than any federal law or regulation setting an
10 applicable environmental requirement on the same or a substantially
11 similar topic or any administrative regulation that is substantively
12 equivalent to a federal law or regulation;

13 (c) Any administrative regulation that would repeal, pursuant to KRS 13A.310,
14 or amend an existing administrative regulation to render it less stringent or
15 less extensive in scope, coverage, or effect; or

16 (d) Any emergency administrative regulation.

17 (4) This section shall not be construed to replace, conflict with, or otherwise render
18 inapplicable any other provision of this chapter.

19 (5) This section applies to any administrative regulation that is proposed or adopted
20 on or after the effective date of this Act.